

ASCII MASTER FLOW – PANEL 1/9: From 1967 instability to the 52nd and 91st Amendment design

ROOT QUESTION

How can party-government stability be protected without extinguishing legislative judgment?

1967 defections -> Committee on Defections -> 52nd Amendment Act 1985.

Tenth Schedule effective 1 March 1985.

52ND AMENDMENT

Articles 101, 102, 190, 191 + Tenth Schedule.

91ST AMENDMENT

split defence deleted | ministry-size caps

| Articles 75(1B), 164(1B), 361B office disabilities.

CURRENT PARAGRAPH MAP

1 definitions | 2 grounds | 3 omitted | 4 merger

| 5 presiding exemption | 6 decision | 7 invalid court bar | 8 rules.

ASCII MASTER FLOW – PANEL 2/9: Grounds and member-type rules

PARTY MEMBER

voluntarily gives up membership

OR votes/abstains contrary to direction without prior permission,
unless condoned within fifteen days.

INDEPENDENT MEMBER

joining a political party after election -> disqualification.

No six-month window.

NOMINATED MEMBER

may join within six months from taking the seat;

joining after that period -> disqualification.

Ravi S. Naik (1994)

voluntarily giving up is wider than formal resignation and may be inferred from conduct.

TRAP

dissenting speech alone is not automatically paragraph 2(1)(b) voting conduct.

ASCII MASTER FLOW – PANEL 3/9: Political party, legislature party and the exact whip test

ORIGINAL POLITICAL PARTY

party to which the member belongs for Schedule purposes.

LEGISLATURE PARTY

House members belonging to the same political party.

WHIP TEST

authorised party direction -> vote or abstention

-> no prior permission -> no condonation within fifteen days.

Subhash Desai (2023)

the political party, not a legislature-party faction acting alone,
authorises the whip/leader for Tenth Schedule purposes.

CURRENT LAW

direction may reach ordinary votes under the text.

PROPOSAL

restrict whips to confidence, no-confidence, Money Bills or core manifesto matters.

ASCII MASTER FLOW – PANEL 4/9: Merger, deleted split and the narrow presiding-officer exemption

PARAGRAPH 3

one-third split defence omitted by the 91st Amendment.

PARAGRAPH 4

original political party merger + not less than two-thirds of legislature party agree
-> protected choice to join merger or operate as separate group under the text.

INTERPRETIVE CAUTION

two-thirds legislators cannot be written as a free-standing permission to switch parties;
original-party and deeming provisions remain central and live disputes must be qualified.

PARAGRAPH 5

narrow exemption for specified presiding officers on giving up/rejoining party
subject to exact office and timing conditions.

TRAP

Speaker neutrality aspiration does not create a general exemption for every office-holder.

ASCII MASTER FLOW – PANEL 5/9: Presiding-officer process, natural justice and judicial review

FIRST INSTANCE

Speaker/Chairman decides; if that officer is concerned, House elects another member.

PROCESS

petition -> maintainability/facts -> notice -> reply/evidence -> hearing
-> reasoned decision -> seat consequence.

Kihoto Hollohan (1992)

presiding officer acts as tribunal; paragraph 7 invalid for lack of ratification;
limited judicial review survives for jurisdictional error, mala fides and natural justice.

Keisham Meghachandra Singh (2020)

absent exceptional circumstances, petitions should ordinarily be decided within three months.

LIMIT

courts ordinarily do not replace the Speaker as first-instance fact finder.

ASCII MASTER FLOW – PANEL 6/9: Resignation, disqualification and the 91st-Amendment office bars

CHRONOLOGY

alleged defection -> petition -> resignation -> Speaker decisions -> judicial review.

Shrimanth Balasaheb Patil (2019)

resignation does not erase antecedent disqualification;

Speaker cannot add an extra re-election ban beyond constitutional text.

DIRECT EFFECT

loss of House membership under Articles 102(2)/191(2).

OFFICE DISABILITIES

Articles 75(1B), 164(1B), 361B

-> minister/remunerative-political-post bar for the constitutionally defined period.

LIMIT

Tenth Schedule disqualification is not a criminal conviction or universal public-office ban.

ASCII MASTER FLOW – PANEL 7/9: Nabam Rebia (2016), Subhash Desai (2023) and distributed institutional authority

Nabam Rebia (2016)

Speaker facing a pending removal notice was held disabled from deciding defection petitions.

PENDING QUALIFICATION

Subhash Desai (2023) referred correctness of that rule to a seven-judge bench.

Do not write Nabam Rebia (2016) as finally overruled.

Subhash Desai (2023)

political party authorises whip | Speaker determines party identity for Schedule purpose
| ECI symbol proceeding is separate | Governor cannot decide intra-party leadership.

DISTRIBUTED ROLES

Speaker -> defection | ECI -> symbol/order field

| Governor -> constitutional functions | court -> review.

TRAP

floor test, symbol dispute and defection petition answer different legal questions.

ASCII MASTER FLOW – PANEL 8/9: Democratic balance, comparison and reform choices

GAINS

reduces open floor-crossing | protects mandate | supports government stability.

COSTS

broad whip suppresses deliberation | Speaker incentives | strategic delay
| merger engineering | resignation tactics | weakened committee scrutiny.

COMPARE

Tenth Schedule -> Speaker/Chairman.

Articles 102(1)/191(1) post-election question -> President/Governor on ECI opinion.

RPA -> statutory grounds/procedure | privilege -> House discipline
| symbol dispute -> ECI field.

REFORM OPTIONS

narrow whip | independent tribunal/ECI-advice model | statutory time limit
| reasoned public procedure | neutral presiding-office safeguards.

STATUS

these are proposals unless enacted or judicially ordered in a particular case.

ASCII MASTER FLOW – PANEL 9/9: UPSC traps, verified PYQs and qualified answer synthesis

PRELIMS FIREWALL

52nd created | 91st tightened | split deleted | merger two-thirds
| giving up wider than resignation | independent no window
| nominated six months | condonation fifteen days
| Speaker first | judicial review survives | defection not crime.

VERIFIED ROUTES

2022 Prelims -> nominated members.
2025 Prelims -> political-party and Tenth Schedule distinction.
2023 GS-II supporting route -> presiding-officer impartiality.

MAINS SPINE

history -> grounds/member types -> party/whip
-> merger -> process/review/delay -> resignation/office bars
-> institutional conflicts -> stability-freedom balance -> bounded reform.

VERDICT

stability needs discipline, but democratic legitimacy needs a narrower whip,
neutral adjudication and enforceable decision time.